

COURT OF PRINCIPAL SESSIONS JUDGE, SHOPIAN

File No.48/ *Revision*

CNR.No. JKSP0133349122023

Date of institution=10.08.2023

Date of decision=11.12.2023

In the case of :

Dr. Naiem-Ul-Haq

S/O: Farooq Ahmad Ahrar

R/O: Bongam Shopian

Tehsil and District Shopian

.....(petitioner)

Versus

1. Laila Khan D/O: Tariq Ahmad Khan

2. Peerzada Nayhan Haq

S/O: Naiem ul Haq

Minor through mother Laila Khan

R/O: Sofanaman Shopian

Tehsil and District Shopian

.....(Respondents)

In the matter of :

Revision against the order dated 13.10.2022 passed by the Id.
Chief Judicial Magistrate Shopian in file No. 61/2022.

Mr. Masavir Tak advocate for petitioner.

Mr. Mubashir Gatoo advocate for respondent.

CORAM:

Riaz-ul-Haq Mirza
JO Code: JK00075

"ORDER"

1. Petitioner through counsel has filed the instant revision petition before this court on 10.08.2023 wherein he has assailed the impugned order dated 13.10.2022 passed by Id. Chief Judicial Magistrate Shopian in a case titled " Laila Khan and anr vs Dr. Naiem ul Haq" passed in the interim application filed along with application under section 125 Cr.P.C seeking grant of maintenance wherein petitioner herein has been directed to pay monthly interim maintenance @ Rs.13000/- in favour of respondent No.1 and

Rs.15000/- which includes school expenses in favour of respondent No.2 from the date of institution of instant application i.e on 01.08.2022.

2. On presentation of the revision petition, summons came to be issued upon the other-side who caused appearance through counsel and contested the memo of revision petition.
3. From the perusal of the record, it would appear that respondent No.1 herein has filed an application in terms of section 125 Cr.P.C seeking maintenance for herself and on behalf of respondent No.2 herein who is minor child of the parties against the petitioner herein in the capacity that revisionist herein being husband of respondent No.1 and father of respondent No.2. It is alleged in the application that the respondent No.1 herein is the wedded wife of petitioner and their marriage has been taken place in the month of 25.05 2016 and out of the said wedlock one issue was born namely Peerzada Nayhan Ahrar, aged 04 years. That the respondent No.1 has remained loyal and has been taking care of the petitioner in the beginning of the marriage then suddenly his behavior changed without any cause or reason thereafter petitioner turned cruel, inhuman and brutal towards the respondent No.1. That the respondents have been deserted and neglected by the petitioner and after all beating and ill treatment was dragged out of her matrimonial home and forced to live with her parents at her parental home along with minor issue since August 2021. That the petitioner herein is having sufficient source of income as he is a Government employee working in SKIMS Soura Srinagar as Specialist Doctor, presently pursuing MCH and is withdrawing monthly handsome salary of Rs.1,10,000/-. That the monthly expenses of the respondents about Rs.1,00,000/- per month on the basic necessities and the daily needs like the expenses of food, clothing etc. Besides the expenses in the shape of monthly fee of her minor son who is studying in a reputed school Birla Open Mind International School at Pampore Srinagar where the respondent

No.1 has to pay monthly fee including the transportation charges, tuition fee, uniforms and other related charges to the tune of Rs.20,000/- per month towards the school authorities. Finally prayed that pending disposal main petition, petitioner herein be directed to pay an interim maintenance of Rs. 1,00,000/- per month towards the respondents which includes monthly tuition fee, bus fare and annual fee of respondent No. 2.

4. The Id. Magistrate after hearing parties in the interim application has allowed the interim application and passed the impugned order. The aggrieved of the said order, the petitioner herein has assailed the said order on the following grounds:-

- i. *That the impugned order is not sustainable in law and fact and same is premature in nature.*
- ii. *That the court below failed to appreciate the provision of section 125 Cr.P.C as well as the evidence on record in the proper and correct perspective.*
- iii. *That the trial court has not even appreciated the written objection and documents and trial court came to an erroneous conclusion while disposing of interim application without considering the fact that respondent No. 1 is a professional advocate practicing at Hon'ble High court of J & K and Ladakh at Srinagar.*
- iv. *That impugned order has been passed in a hot haste without applying of judicial mind. Finally prayed that the impugned order be set aside.*

5. **Heard and considered.**

6. Section 125Cr.P.C has been incorporated in the code which empowers the Magistrate to grant maintenance in favour of wife, children etc. who are neglected by the husband/father as the case may be and the father /husband having sufficient means has refused to pay maintenance. So in short the provision is social welfare legislation aimed at to prevent these respondents herein from destitution and vagrancy. The Magistrate is also empowered to grant interim maintenance till disposal of the main petition as first aid .In case law titled **Subash Chand V/S Krishnai Devi decided on 20th September 2021** wherein the Hon'ble High Court of H.P has observed as under.

"Grant of interim maintenance is similar to give first aid. Chapter IX of the code provide quick remedy by summary procedure to protect against starvation and tide over immediate difficulties by deserted wife or children to secure some reasonable sum by way of maintenance."

7. Now the moot point before this court is, whether grant of interim maintenance can be granted in favour of the respondent (wife) when ground of divorce was pleaded by his husband.
8. Fact remains that so far as respondent/wife is concerned, she has prima facie proved her relation with petitioner/husband as that of a legally wedded couple which is a sufficient proof in the eyes of law for grant of interim maintenance to her.
9. So far as the issue of divorce is concerned, this fact has been pleaded by the husband in his objections. This ground is not simply to be alleged but to be proved by him in the court. And the trial court itself is on record to state that validity of divorce is to be proved by the evidence. Moreover not only the pronouncement of divorce is to be proved but whether it is in accordance with the law as laid down by the Hon'ble Supreme Court in its judgment given in case **Shayara Bano Vs U.O.I (D.O.D 22.08.2017)** and also as per Quranic injunctions on the subject. And onus of proving these facts purely and squarely lies on the husband/petitioner.
10. The basic law of Evidence Act is that one who alleges a particular fact to exist has to prove the same. Therefore, once a fact of divorce is pleaded by the petitioner/husband, the onus of proving it lies exclusively on him. And unless it is proved, the factum of marriage is to be recognized by the Court as it stands prima-facie proved by the respondent for grant of interim maintenance to her.
11. However, it will be travesty of justice and an absurd understanding of concept of grant of interim maintenance to the respondent that she in- spite of proving prima-facie her relations with that of petitioner as that of his legally wedded wife, still has to wait for long for the respondent to prove first that he has given the divorce.

Hon'ble Supreme Court in case titled " Shamim Ara vs State of U.P and anr" AIR 2002 S.C 3551 while dealing with such an argument of a husband held as under:-

18. We are also of the opinion that the talaq to be effective has to be pronounced. The term 'pronounce' means to proclaim, to utter formally, to utter rhetorically, to declare to, utter, to articulate (See Chambers 20th Century Dictionary, New Edition, p.1030). There is no proof of talaq having taken place on 11.7.1987. What the High Court has upheld as talaq is the plea taken in the written statement and its communication to the wife by delivering a copy of the written statement on 5.12.1990. We are very clear in our mind that a mere plea taken in the written statement of a divorce having been pronounced sometime in the past cannot by itself be treated as effectuating talaq on the date of delivery of the copy of the written statement to the wife. The respondent No.2 ought to have adduced evidence and proved the pronouncement of talaq on 11.7.1987 and if he failed in proving the plea raised in the written statement, the plea ought to have been treated as failed. We do not agree with the view propounded in the decided cases referred to by Mulla and Dr. Tahir Mahmood in their respective commentaries, wherein a mere plea of previous talaq taken in the written statement, though unsubstantiated, has been accepted as proof of talaq bringing to an end the Shamim Ara vs State Of U.P. & Anr on 1 October, 2002 Indian Kanoon - <http://indiankanoon.org/doc/332673/> 6 marital relationship with effect from the date of filing of the written statement. A plea of previous divorce taken in the written statement cannot at all be treated as pronouncement of talaq by the husband on wife on the date of filing of the written statement in the Court followed by delivery of a copy thereof to the wife. So also the affidavit dated 31.8.1988, filed in some previous judicial proceedings not inter parte, containing a self-serving statement of respondent no.2, could not have been read in evidence as relevant and of any value.

Similar is the view of our own Hon'ble High Court as held in its judgment titled **Zahoor Ahmad Banday Vs. Yasmeena Jan & Ors** 2006 (1) JKJ 102. What is held in para 8 is repeated below:-

"The wife is entitled to interim maintenance till the plea of divorce is proved. If the interim maintenance will not be granted to the wife while keeping in view the plea of divorce raised by the husband, that will amount to accepting the plea of divorce"

14. The respondent no.1 along with her minor child is presently living in the rented house at Srinagar. After assessing the status of the petitioner who is doctor by profession presently posted at SKIMS Soura. The respondent No. 1 is lawyer by profession. However she states that she is junior lawyer. Admittedly she is working as lawyer practicing at Hon'ble High court of J & K and Ladakh. Therefore interim maintenance granted in favour of respondent No. 1 is very high. She must bear half of the maintenance, as such, the interim maintenance of Rs. 13,000/P.M is reduced to Rs. 5,000/P.M which shall be paid by the petitioner towards the respondent No. 1. The interim maintenance was granted in favour of the respondent No. 2 is also higher side as the said minor is studying in primary level, as such Rs. 15,000/P.M is reduced to Rs. 10,000/ per month which is justified.
15. In view of the foregoing reasons and discussion, the impugned order dated 13.10.2022 passed by Id. Chief Judicial Magistrate Shopian is modified to the extent that petitioner herein shall pay interim maintenance of Rs.5000/- and Rs.10,000/- in favour of the respondent No.1 and 2 respectively from the date of institution of interim application i.e 01.08.2022. Copy of this order along with record, if any, is transmitted to the Id. trial court for information with direction to proceed in the matter/ main petition in accordance with law.
16. The interim orders passed, if any, in the revision petition shall stand vacated forthwith.

Parties through their counsel are directed to cause their appearance before the trial court on 21.12.2023.

18. The revision petition stands accordingly disposed of and shall be consigned to records after due compilation.

Announced:
11.12.2023.


Principal Sessions Judge,
Shopian